

**UNITED STATES DISTRICT COURT
SOUTHERN DISTRICT OF FLORIDA**

JAMES VANDERLIN,

Plaintiff(s),

v.

Case No.:

DEPARTMENT OF JUSTICE DRUG
ENFORCEMENT ADMINISTRATION
of the UNITED STATES OF AMERICA,

Defendant(s).

_____ /

COMPLAINT

COMES NOW, Plaintiff, JAMES VANDERLIN, by and through the undersigned counsel, sues Defendant, UNITED STATES DEPARTMENT OF JUSTICE, DRUG ENFORCEMENT ADMINISTRATION (“DEA”) and alleges as follows:

1. This is an action arising under the Federal Tort Claims Act, 28 U.S.C.A. §§ 2671 et seq. This court is vested with jurisdiction pursuant to Section 1346(b), Title 28 of the United States Code.

2. The Plaintiff, JAMES VANDERLIN is a United States citizen and resident of Palm Beach County, Florida, and the motor vehicle collision on which this cause of action is based arose in Palm Beach County. Thus, venue is properly laid in this court.

3. On 05/12/2021, Plaintiff, JAMES VANDERLIN, was operating his vehicle on South Military Trail, at or near the intersection with Summit Boulevard in unincorporated Palm Beach County, Florida.

4. On 05/12/2021, IAN LANCER MAC VANE was an employee of the Defendant Department of Justice Drug Enforcement Administration of the United States of America and was acting within the course and scope of his employment while operating a 2015 Chevrolet Silverado owned by Defendant DEA at the time of the collision described below.

5. At all times material, under Florida tort law, IAN LANCER MAC VANE, owed a duty to both the public at large and to Plaintiff JAMES VANDERLIN, to operate the Chevrolet Silverado in a reasonable manner.

6. At or about 1:30 PM on 05/12/2021, on South Military Trail near the intersection with Summit Boulevard in Palm Beach County, Florida, IAN LANCER MAC VANE breached said duty by negligently operating the Chevrolet Silverado so that it collided into the rear of Plaintiff, JAMES VANDERLIN's vehicle.

7. IAN LANCER MAC VANE was negligent in failing to keep a proper lookout and in failing to take, or attempt to take, reasonable avoidance action; and he otherwise failed to act prudently under the circumstances. IAN LANCER MAC VANE's negligence was the proximate cause of the collision, and this negligence is imputed to Defendant DEA, who is vicariously liable for the actions of their employee, and as the permissive owner of the dangerous instrumentality, Chevrolet Silverado, being driven by IAN LANCER MAC VANE.

8. As a direct and proximate result of these injuries, Plaintiff JAMES VANDERLIN has endured and will continue to endure great pain and suffering and mental anguish, and he is permanently injured. Plaintiff has sustained substantial past medical expenses and will endure future medical expenses as well as a loss of future earning capacity.

9. On 05/20/2021, Plaintiff submitted his claim to the Department of Justice Drug Enforcement Administration, who through their office of Chief Counsel, rejected the claim amount

on 09/20/2022.

10. All notice requirements have been met to proceed to this cause of action.

WHEREFORE, Plaintiff JAMES VANDERLIN requests a jury trial to determine liability and obtain a judgment against the Defendant for all damages alleged, the costs of this action, as well as any other remedy deemed just and proper by the Court.

Date: May 9th, 2025

BY:

/s/Todd Norbraten

Todd Norbraten, Esquire

Florida Bar No. 56605

Attorneys for Plaintiff

Morgan & Morgan Fort Myers PLLC

1940 SW Fountainview Boulevard, Suite 102

Port St. Lucie, FL 34986

(561) 812-1546 Telephone

(561) 812-1570 Direct Fax

tnorbraten@forthepeople.com

Kelly.mcconnachie@forthepeople.com

SERVICE LIST

UNITED STATES OF AMERICA
Pam Bondi, Attorney General of the United States
Attorney General's Office
ATTENTION: CIVIL PROCESS CLERK
950 Pennsylvania Avenue S.W.
Washington, D.C. 20530

United States Department of Justice
Drug Enforcement Administration
Office of Chief Counsel (CCL/SNJ)
Civil Litigation Section
Attention: Marcia N. Tiersky, Associate Chief Counsel
8701 Morrisette Drive
Springfield, Virginia 22152

U.S. Attorney's Office
Southern District of Florida
500 S. Australian Avenue Suite 400
West Palm Beach, FL 334401